



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL

3rd Floor Gusaling Batasan., Brgy. Zapote, City of Biñan, Laguna
(049) 513-5063

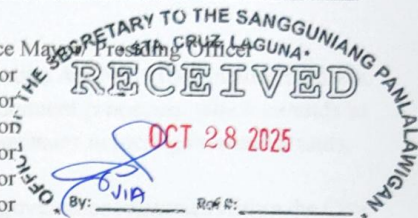


**EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL
OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY
HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF
LAGUNA DATED 20 OCTOBER 2025.**

PRESENT:

Hon. JONALINA R. REYES
Hon. LIBUNERO O. ALATIIT
Hon. LIZA L. CARDEÑO
Hon. DONNA ANGELA P. YATCO
Hon. ROMMEL R. DICDICAN
Hon. ELVIS D. BEDIA
Hon. JOSELLE TITUS V. BAUTISTA
Hon. ELMARIO B. DIMARANAN
Hon. ALEXIS H. DESUASIDO
Hon. CHRISTOPHER A. ALBA
Hon. VICTOR L. CARIÑO
Hon. INGRID KATHRINA L. ALMEDA
Hon. ALONZO KYNE S. GARCIA
GERONIMO D. ROMANTIGUE, MDMG

- City Vice Mayor / Presiding Officer
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- SK-Federation President
- City Council Secretary



By: [Signature] Rof R: _____
sangguniangpanlalawigan@gmail.com
(049) 501-1026/(049) 523-4108

GUESTS:

Mr. Jaime M. Salandanan (Former Councilor)
Legislative Staff of the City Government of Biñan

ABSENT:

Hon. LIZA L. CARDEÑO - Councilor
Hon. ARTHUR R. DIMAGUILA - Councilor
Hon. CHRISTOPHER A. ALBA - Councilor

CITY ORDINANCE NO. 23- (2025)

**AN ORDINANCE INSTITUTIONALIZING TRANSPARENCY, COORDINATION, AND
LOCAL ALIGNMENT IN ALL INFRASTRUCTURE PROJECTS UNDERTAKEN
WITHIN THE CITY OF BIÑAN IMPLEMENTED BY NATIONAL GOVERNMENT
AGENCIES**

Authored by: Hon. Jonalina R. Reyes

Co-Authored by: Hon. Alexis H. Desuasido, Hon. Rommel R. Dicdican,
Hon. Libunero O. Alatiit, Hon. Elvis L. Bedia, Hon. Elmario B. Dimaranan,
Hon. Ingrid Kathrina L. Almada

WHEREAS, Article II, Section 27 of the 1987 Philippine Constitution provides that the State shall maintain honesty and integrity in public service and take positive and effective measures against graft and corruption;

WHEREAS, Article II, Section 28 of the 1987 Philippine Constitution further mandates the State to adopt and implement a policy of full public disclosure of all its transactions involving public interest;

WHEREAS, Article X, Section 3 of the 1987 Philippine Constitution recognizes the role of local government units in promoting accountability, transparency, and people's participation in governance;

WHEREAS, Section 16, of the Local Government Code of 1991 (Republic Act No. 7160) empowers local government units to promote the general welfare of their constituents and ensures that projects within their territorial jurisdiction are properly coordinated and aligned with local development plans;

WHEREAS, the Government Procurement Reform Act (Republic Act No. 9184) institutionalizes transparency, competitiveness, and accountability in all procurement processes, which extends to infrastructure projects implemented by national government agencies in local government units;

WHEREAS, infrastructure projects implemented by national government agencies within the City of Biñan have a direct impact on the lives of its residents, thereby requiring transparency, accountability, and local alignment to ensure that such projects respond to the actual needs of the community;

WHEREAS, it is imperative to institutionalize mechanisms for transparency and coordination to avoid duplication, wastage of resources, and to ensure effective and efficient delivery of infrastructure services;

NOW, THEREFORE, BE IT ORDAINED by the Sangguniang Panlungsod of Biñan, in session duly assembled, that:

SECTION 1. Title

This Ordinance shall be known as the "Transparency and Local Alignment in Infrastructure Projects Ordinance of the City of Biñan."

SECTION 2. Declaration of Policy

It is hereby declared the policy of the City Government of Biñan to ensure transparency, coordination, accountability, and proper alignment of all infrastructure projects undertaken within its jurisdiction by national government agencies, in order to safeguard the welfare of its constituents and promote sustainable development.

SECTION 3. Definition of Terms

- a. Infrastructure Projects – refer to construction, rehabilitation, expansion, or improvement of public facilities including roads, bridges, drainage systems, flood control projects, public buildings, health centers, schools, and other related facilities.
- b. Transparency – the principle of making project information accessible, timely, and comprehensible to the public.
- c. Coordination – the systematic collaboration and consultation between national government agencies and the City Government of Biñan to ensure efficient and effective implementation of projects

- d. Local Alignment – the conformity of national government projects to the development priorities, policies, and plans of the City Government, including the CLUP and CDP.
- e. Project Profile – a complete set of project details including objectives, scope, location, implementing agency, contractors, budget, and timeline.

SECTION 4. Coverage

This Ordinance shall apply to all infrastructure projects implemented by national government agencies within the territorial jurisdiction of the City of Biñan, regardless of funding source, project scale, or mode of implementation.

SECTION 5. Transparency Measures

To promote transparency, all national government agencies undertaking infrastructure projects in the City shall:

- a. Submission of Documents – Provide the City Planning and Development Office (CPDO) and the Sangguniang Panlungsod with a project profile, detailed engineering design, budget allocation, source of funds, and implementation timeline before project commencement.
- b. Public Disclosure – Post project information in conspicuous places in the project site, barangay halls, and the Binan City Hall
- c. Contractor Information – Disclose the identity, qualifications, and performance record of contractors, subcontractors, and suppliers involved.
- d. Financial Transparency – Report all disbursements, changes in project cost, and final expenditures, certified by authorized signatories
- e. Completion and Post-Evaluation Report – Within 60 days after project completion, submit a final report including outcomes, challenges, and recommendations for future projects.

SECTION 6. Coordination Mechanism

- a. A Local Infrastructure Coordination Desk shall be established under the City Planning and Development Office (CPDO), with the City Engineering Office as a permanent member, to receive, consolidate, evaluate, and disseminate project information.
- b. The City Engineering Office shall conduct technical evaluation, on-site inspections, and monitoring to ensure compliance with approved designs, safety standards, and quality of works.
- c. All concerned national agencies shall coordinate with the Local Infrastructure Coordination Desk prior to the start of any project.
- d. Coordination meetings shall be conducted quarterly between national government agencies, the CPDO, the City Engineering Office, the Barangay Chairman of the Concerned Barangay and the City Mayor's Office to update on progress and address implementation issues.

SECTION 7. Local Alignment Requirement

All infrastructure projects must conform to:

- a. The Comprehensive Land Use Plan (CLUP);
- b. The Comprehensive Development Plan (CDP);
- c. Other development priorities of the City of Binan, as approved by the Sangguniang Panlungsod.

SECTION 7-A. Building Permit Requirement for National Government Projects

All contractors and implementing offices of national government agencies undertaking infrastructure projects within the territorial jurisdiction of the City of Biñan are hereby required to secure a Building Permit from the Office of the Building Official (OBO) of the City Government of Biñan prior to the commencement of any construction, repair, renovation, or improvement activity.

Such requirement is pursuant to Presidential Decree No. 1096 (The National Building Code of the Philippines) and its Implementing Rules and Regulations, which expressly mandate that no person, firm, corporation, or government agency, including national government instrumentalities, shall construct, alter, repair, move, convert, or demolish any building or structure without first obtaining a Building Permit from the Building Official having jurisdiction.

Failure to secure the required Building Permit shall constitute a violation of this Ordinance, without prejudice to the imposition of penalties provided under the National Building Code, its IRR, and other applicable laws.

SECTION 8. Accountability of Implementing Agencies

National government agencies implementing projects shall be accountable for ensuring compliance with transparency, coordination, and alignment requirements. Failure to submit required documents or reports shall be formally reported by the City Government to their respective central offices.

SECTION 9. Implementing Offices

The City Planning and Development Office (CPDO), in coordination with the City Engineering Office, Office of the City Mayor, and the Sangguniang Panlungsod, shall be the primary implementing offices of this Ordinance.

SECTION 10 - Penalty

- a. National government agencies implementing projects shall be accountable for ensuring compliance with transparency, coordination, and alignment requirements. Failure to submit required documents or reports shall be formally reported by the City Government to their respective central offices.

b. Administrative Accountability

Any office of a national government agency undertaking infrastructure projects within the territorial jurisdiction of the City of Biñan who who violates any of the provision shall be subject to appropriate administrative sanctions in accordance with the Civil Service Law and other pertinent rules and regulations. The City Government of Biñan, through the Office of the City Mayor, and the Sangguniang Panlungsod, shall formally report such violations to the concerned national agency for the institution of proper disciplinary measures.

c. Referral for Criminal Liability

Any act committed in violation of this Ordinance that also constitutes fraud, falsification, corruption, or any offense punishable under the Revised Penal Code, Republic Act No. 3019 (Anti-Graft and Corrupt Practices Act), Republic Act No. 9184 as amended by R.A. 12009, or other special laws shall be referred to the appropriate prosecutorial or judicial authorities for proper action.

SECTION 11. Separability Clause

If any part or provision of this Ordinance is declared invalid or unconstitutional, the other parts or provisions not affected shall remain in full force and effect.

SECTION 12. Repealing Clause

All ordinances, resolutions, and issuances inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 13. Effectivity

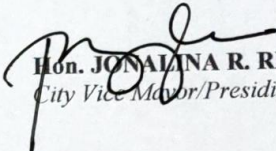
This Ordinance shall take effect fifteen (15) days after its publication in a newspaper of local circulation and posting in at least three (3) conspicuous places within the City.

UNANIMOUSLY APPROVED.

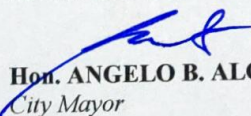
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. JONALYN R. REYES
City Vice Mayor/Presiding Officer

APPROVED BY:


Hon. ANGELO B. ALONTE
City Mayor